

**Superior Court of the State of California  
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C21**

**JUDGE CRAIG E. ARTHUR**

**Date: July 31, 2026**

The court will endeavor to post tentative rulings on the Court's website by 4:00 p.m. on the day before the Law and Motion Calendar. However, ongoing proceedings may prevent posting by that time. Please do not call the department for tentative rulings if none are posted. The court will not entertain a request for continuance once a tentative ruling has been posted and no additional papers will be considered once a tentative ruling has been posted.

If all parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling (657-622-5221). The tentative ruling will then become the order of the Court.

The Law and Motion Calendar is typically heard on Fridays at 10 a.m., unless otherwise noted. All arguments will be heard at that time. Unless otherwise indicated in the tentative ruling, the prevailing party will give Notice of Ruling. If no one appears for the hearing, the court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

**APPEARANCES: The Court offers remote appearances for the Law and Motion Calendar via Zoom.** All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/civil-remote-hearings>, and then click on Department C21 (to check-in). The Court's "Civil Desktop Remote Appearance Video," an instructional video, is available through the Court's website at [Civil Desktop Remote Appearance Video](#), and the Court's "Civil Mobile Application Remote Appearance Video" is available through the Court's website at [Civil Mobile Application Remote Appearance Video](#). If you encounter difficulty checking-in online or connecting remotely, please call Department C21 for assistance at (657) 622-5221. Counsel and self-represented parties preferring to appear in-person may do so.

**COURT REPORTERS:** Official court reporters (i.e. court reporters employed by the Court) are NOT typically provided for law and motion matters in this department. Please see the Court's website for further information. The Court's policy on privately-retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

**No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.**

| #  | Case Name                                               | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
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| 50 | <b><i>Off calendar.</i></b>                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 51 | <b><i>Gulley vs. James Rivers Insurance Company</i></b> | <p>Plaintiff Calvin Gulley’s Motion for Leave To File First Amended Complaint is GRANTED.</p> <p>Under Code of Civil Procedure section 473, subdivision (a)(1), “[t]he court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” While this discretion will generally be exercised liberally to permit amendment of the pleadings, the court acts within its discretion to deny an amendment where there has been a long delay in seeking the amendment and allowing the amendment would be prejudicial to the opposing side. (See <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 488.)</p> <p>Under California Rules of Court, rule 3.1324, a motion to amend shall include a copy of the proposed amendment or amended pleading, identify by page, paragraph, and line number any additions to and deletions from the prior pleading. (Cal. Rules of Court, rule 3.1324(a).) Additionally, the motion shall be accompanied by a supporting declaration that specifies:</p> <ul style="list-style-type: none"> <li>(1) The effect of the amendment;</li> <li>(2) Why the amendment is necessary and proper;</li> <li>(3) When the facts giving rise to the amended allegations were discovered; and</li> </ul> |

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|    |                                     | <p>(4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)</p> <p>The Court finds Plaintiff has substantially complied with Rule 3.1324. However, it should be noted that the proposed pleading attached to Plaintiff's counsel's supporting declaration (ROA 135) does not actually include the language (at paragraph 90) that Plaintiff is seeking leave to add. This omission should be corrected before the amended pleading is filed. Otherwise, the Court finds it is in the furtherance of justice to allow the filing of the proposed amended complaint.</p> <p>Plaintiff shall file the first amended complaint no later than August 14, 2026, and serve it according to the Code of Civil Procedure.</p> <p>Plaintiff shall give notice of the ruling.</p>                                  |
| 52 | <b><i>Ignatius vs. Ignatius</i></b> | <p>The Court denies Plaintiff Christina M. Ignatius's Motion to disqualify Wingert Grebing Brubaker &amp; Walshok LLP (including attorneys Colin H. Walshok and Pragya Sharma) and Reich Radcliffe &amp; Hoover LLP (including attorneys Marc G. Reich and Richard R. Radcliffe) as Counsel for Defendants Stephen Ignatius, Monica Solorzano, Thomas Rieser, Kirsten Rieser, Villela, Inc.</p> <p>Plaintiff lacks standing to seek the requested relief. California law only permits a non-client to move for disqualification of opposing counsel under certain circumstances. (<i>Conservatorship of Lee C.</i> (2017) 18 Cal.App.5th 1072, 1084.) When an attorney's ethical breach is "manifest and glaring" and so "infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful</p> |

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|  | <p>determination of [his or] her claims,” a non-client may satisfy the standing requirements to bring a motion to disqualify based on the attorney's conflict of interest or another ethical violation. (<i>Kennedy v Eldridge</i> (2011) 201 Cal.App.4th 1197, 1204; <i>Lynn v George</i> (2017) 15 Cal.App.5th 630, 634–635 (standing may arise from duty of confidentiality attorney owes to moving party despite absence of attorney-client relationship). A judge may grant a non-client's motion for disqualification when the opposing attorney's continued representation threatens the moving party with a cognizable injury or would undermine the integrity of the judicial process. (<i>Kennedy v Eldridge, supra</i>, 201 Cal.App.4th at 1205.)</p> <p>Plaintiff argues that in trust litigation, simultaneous representation of a trustee individually and as a fiduciary is disqualifying when personal tort or breach of duty claims create adversity with beneficiaries citing <i>Fiduciary Trust International of California v. Superior Court</i> (2013) 218 Cal.App.4th 465.</p> <p>In <i>Fiduciary Trust</i>, the court addresses conflicts which “arise from successive representation of clients with potentially adverse interest.” An attorney had previously assisted in drafting wills for a husband and wife, creating a set of family trusts and wills with the husband’s children’s beneficiaries. Following the husband’s death, the wife revoked her existing will and drafted a new instrument to transfer personal assets to her daughter. Following these revisions, a dispute arose regarding which estate was responsible for the payment of taxes following the wife’s death. In this dispute, the law firm who had represented the wife throughout estate planning, took an</p> |
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|  | <p>adverse position to the wife by representing the trustees of her husband's estate. In addressing this successive conflict, the court addressed issues of confidentiality and the joint client exception, both of which are not primary standards considered when addressing a concurrent conflict. However, these are not the facts in the present case. Plaintiff does not contend that she was ever represented by opposing Counsel.</p> <p>"The attorney for the trustee of a trust is not, by virtue of this relationship, also the attorney for the beneficiaries of the trust. The attorney represents only the trustee." (<i>Fletcher v. Superior Court</i> (1996) 44 Cal.App.4th 773, 777.) The Supreme Court likewise holds that the trustee, rather than the beneficiary, is the client whether counsel advises about trust administration or the trustee's own potential liability. (<i>Wells Fargo Bank v. Superior Court</i> (2000) 22 Cal.4th 201, 209, 212-213.)</p> <p>On reply, Plaintiff argues that the duty of confidentiality is being compromised here. (Reply, p. 2:25-26.) The Court notes that in case of concurrent representation, the primary value at stake is the attorney's duty of loyalty, rather than confidentiality. (<i>Flatt v Superior Court</i> (1994) 9 Cal.4th 275, 284.)</p> <p>Plaintiff argues that Defense Counsel cannot represent both Stephen Ignatius and the other Defendants, contending they have adverse interest. But Rule 1.7 calls for informed written consent from the affected clients, not from their adversary.</p> <p>Further, the Court finds that Plaintiff's lengthy delay in bringing this Motion has resulted in</p> |
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|  | <p>waiver of any purported conflict. “[A]ttorney disqualification can be impliedly waived by failing to bring the motion in a timely manner.” (<i>Fiduciary Trust International of California v. Superior Court</i> (2013) 218 Cal.App.4th 465, 490). “To operate as a waiver, however, the ‘delay [and]...the prejudice to the opponent must be extreme.” (<i>Id.</i>). “If the opposing party makes a prima facie showing of extreme delay and prejudice, the burden then shifts to the moving party to justify the delay.” (<i>Id.</i>) “It stands to reason that the later the motion is made, the more difficult it is to replace counsel.” (<i>Id.</i>) Additionally, “one can properly consider the possibility that the ‘party brought the motion as a tactical device to delay litigation.” (<i>Id.</i>)</p> <p>Here, Plaintiff filed her Complaint on 7/9/24. (ROA 1). Defendants Stephen Ignatius (in all capacities), Thomas Rieser (in all capacities), and Kirsten Rieser (in all capacities) answered the Complaint on 9/10/24, represented by Reich Radcliffe &amp; Hoover LLP. (ROA 40.)</p> <p>Defendants Monica Solorzano and Villela Inc. answered the Complaint on 10/4/24 also represented by Reich Radcliffe &amp; Hoover LLP. (ROA 92.)</p> <p>On 10/4/24, Wingert Grebing Brubaker &amp; Walshok LLP appeared for Stephen Ignatious (in all capacities) by filing an Association of Counsel. (ROA 108.)</p> <p>Plaintiff did not file this Motion until almost 18 months after the most recent attorney appearance. The Court finds that this Motion is sought for tactical delay at this stage in the litigation.</p> |
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|    |                                    | <p>On reply, Plaintiff withdraws her improper request for sanctions.</p> <p>Thus, the Motion is DENIED.</p> <p>Defendants are ordered to serve notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 53 | <b><i>Lamping vs. McCarthy</i></b> | <p>The application by Defendant/Cross-Complainant Rick Edward McCarthy, Jr. (“Defendant” or “McCarthy”) for a preliminary injunction against Plaintiffs/Cross-Defendants Gladys Lamping (“Gladys”) and John Lamping (“John”) (collectively, “Plaintiffs”) is GRANTED.</p> <p>Defendant’s objections to Gladys’ declaration and Penafiel’s declaration are overruled.</p> <p>The Court exercises its discretion to consider Defendant’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Plaintiffs may respond to Defendant’s reply evidence during oral argument.</p> <p><b><u>Legal Standard</u></b></p> <p>“The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.” (<i>Continental Baking Co. v. Katz</i> (1968) 68 Cal.2d 512, 528.) “The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy.” Rather, the court is merely determining whether, pending a trial on the merits, the defendant should or should not be</p> |

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|  | <p>restrained from exercising a right claimed by defendant.” (<i>Cohen v. Board of Supervisors</i> (1985) 40 Cal.3d 277, 286, citing <i>Continental Baking</i>, supra, 68 Cal.2d at 528.)</p> <p>Injunctions are classified as either prohibitory or mandatory. “[T]he general rule is that an injunction is prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties.” (<i>Davenport v. Blue Cross of California</i> (1997) 52 Cal.App.4th 435, 446; see 6 Witkin, Cal. Proc. 6th Prov Rem § 276 (2025) [“The principle is sometimes more broadly stated that an injunction that necessarily contemplates a change in the relative positions or rights of the parties is mandatory”].) The nature of injunction is determined by its substance not form. (<i>Agricultural Labor Relations Board v. Superior Court</i> (1983) 149 Cal. App. 3d 709, 713 [finding injunction restraining employer from “refusing to reinstate” worker was in fact mandatory injunction requiring employer to rehire worker].)</p> <p>The moving party bears the burden of showing all elements necessary to support the issuance of a preliminary injunction. (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) “The law is well settled that the decision to grant a preliminary injunction rests in the sound discretion of the trial court.” (<i>IT Corp. v. County of Imperial</i> (1983) 35 Cal.3d 63, 69, citation omitted.)</p> |
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|  | <p>Pursuant to Code of Civil Procedure section 526, subdivision (a), an injunction “may be granted in the following cases:</p> <p>(1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.</p> <p>(2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.</p> <p>(3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.</p> <p>(4) When pecuniary compensation would not afford adequate relief.</p> <p>(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.</p> <p>(6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings.</p> <p>(7) Where the obligation arises from a trust.”</p> |
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|  | <p>The burden is on plaintiff to show all elements necessary to support issuance of the injunction. (<i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481.) “A superior court must evaluate two interrelated factors when ruling on a request for a preliminary injunction: (1) the likelihood that the plaintiff will prevail on the merits at trial and (2) the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (<i>Smith v. Adventist Health System / West</i> (2010) 182 Cal.App.4th 729, 749.)</p> <p><b><u>Merits</u></b></p> <p>Contrary to Plaintiffs’ contention, the requested injunction is not a mandatory injunction.</p> <p>Defendant showed a probability of prevailing on Defendant’s second cause of action for declaratory judgment re property ownership and third cause of action for quiet title.</p> <p>Pursuant to CCP section 1060, any person “interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her</p> |
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|  | <p>rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract.”</p> <p>To state a cause of action for declaratory relief, Defendant must allege: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations. (<i>Wilson &amp; Wilson v. City Council of Redwood City</i> (2011) 191 Cal.App.4th 1559, 1582.)</p> <p>Defendant alleges he holds legal title to all of the Subject Properties, that Plaintiffs dispute Defendant holds sole title to the Subject Properties, and that Plaintiffs claim at least partial and/or beneficial ownership in the Subject Properties. (Cross-Complaint, ¶¶ 29-30.) Defendant seeks a declaration that Defendant owns sole and complete legal and equitable title to the Subject Properties. (<i>Id.</i>, ¶ 31.)</p> <p>The elements of a cause of action for quiet title are: (i) A description of the property including both its legal description and its street address or common designation; (ii) The plaintiff’s title and the basis upon which it is asserted; (iii) The adverse claims as against which a determination is sought; (iv) The date as of which a determination is sought and, if other than the date the complaint is filed, a statement why the determination is sought as of that date; and (v) A prayer for determination of the plaintiff’s title against the adverse claims. In addition, if the quiet title action is based on the defendant’s fraud</p> |
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|  | <p>in obtaining record title, the plaintiff must plead the factual basis for the fraud specifically. (Code Civ. Proc., § 761.020; Miller &amp; Starr Calif. Real Estate 3d, §34:105.)</p> <p>Defendant alleges Defendant holds legal title to the Rental Properties and provided their legal descriptions, that Defendant pays for the loans secured by the Rental Properties, that Plaintiffs claim a beneficial interest in the Rental Properties, that Defendant seeks a judgment determining, as of the date of the Cross-Complaint, that Defendant holds full legal and equitable title to the Investment Properties, and that he seeks a determination that Plaintiffs have no cognizable adverse claim to the Rental Properties. (Cross-Complaint, ¶¶ 33-37 and 20:10-16, Exhibits C, D, and E.)</p> <p>Defendant showed Defendant holds title to the real property at issue in this OSC, namely the Sunset Beach Property, Oasis Property, and the Sonora Property (“Rental Properties”). (McCarthy Decl., ¶¶ 2-3, Exhibits C, D, E, H, I, and J.) Plaintiffs do not dispute Defendant holds legal title. (Gladys Decl., ¶ 3.) As the Court previously noted in granting Defendant’s <i>ex parte</i> application for a temporary restraining order and order to show cause regarding preliminary injunction, Plaintiffs concede Defendant holds legal title. (May 22, 2026 Minute Order.)</p> <p>Plaintiffs contend they hold an equitable interest in the Rental Properties, which Defendant disputes. (Gladys Decl., ¶ 3; McCarthy Decl., ¶</p> |
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|  | <p>4.) However, Plaintiffs have not shown they can overcome the statute of frauds.</p> <p>Civil Code section 1624, subdivision (a)(3) provides that an agreement for the sale of real property, or of an interest therein, is invalid unless the agreement, or some note or memorandum thereof, is in writing and subscribed by the party to be charged. (<i>See, Dutton v. Interstate Inv. Corp.</i> (1941) 19 Cal.2d 65, 69-70 [“a transfer of an interest in real property is required by our statutes to be in writing...an agreement to share the profits from a transaction involving real estate is not required to be in writing.”].) In addition, “No estate or interest in real property, other than for leases for a term not exceeding one year, nor any power over or concerning it, or in any manner relating thereto, can be created, granted, assigned, surrendered, or declared, otherwise than by operation of law, or a conveyance or other instrument in writing, subscribed by the party creating, granting, assigning, surrendering, or declaring the same, or by the party's lawful agent thereunto authorized by writing.” (Code Civ. Proc., § 1971.)</p> <p>Plaintiffs presented no evidence of any agreement, note, or memorandum in writing that memorializes their purported beneficial interest. The sole document Plaintiffs reply upon to show Defendant “corroborated this understanding” that Defendant would hold title to the Subject Properties and Plaintiffs would retain a beneficial interest in the Subject Properties does not reflect</p> |
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|  | <p>retention of a beneficial interest in the Subject Properties. (Gladys Decl., ¶¶ 3-4, Exhibit 13.)</p> <p>Plaintiffs also contend they made the initial down payment for the Rental Properties and pay for the maintenance, management, and/or utilities for the Rental Properties. However, the evidence Plaintiffs submit does not support their contention that they made any payment using Plaintiffs' funds. The only evidence of such payments is Gladys's declaration. The exhibits attached to her declaration do not reflect payments that were made using Plaintiffs' funds, as opposed to Plaintiffs making the payments from the US Bank account, which was where the rent payments were to be deposited.</p> <p>The Court finds Defendant has shown a probability of prevailing on these two causes of action.</p> <p>Contrary to Plaintiffs' contention, Defendant showed pecuniary compensation would not afford adequate relief. Defendant showed Defendant will not have the monetary resources to pay the mortgages for the Rental Properties come June 2026 and as such, the Rental Properties may be subject to foreclosure proceedings. (McCarthy Decl., ¶¶ 5, 16, and 17.)</p> <p>Damages are not typically an adequate remedy when the contract involves unique real property. (<i>See, Fonteno v. Wells Fargo Bank, N.A.</i> (2014) 228 Cal.App.4th 1358, 1380; <i>see</i>, Civ. Code, § 3387 ["It is to be presumed that the breach of an agreement to transfer real property cannot be</p> |
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|  | <p>adequately relieved by pecuniary compensation. In the case of a single-family dwelling which the party seeking performance intends to occupy, this presumption is conclusive.”].)</p> <p>Plaintiffs did not show what harm would result if the preliminary injunction was issued. Plaintiffs’ harm would likely only be monetary loss. Defendant showed he would be at risk of losing the Rental Properties to foreclosure if Plaintiffs collect the rent and fail to make the required payments. Defendant would also be risking harm to his credit. The Court finds the balancing of harm tips in favor of Defendant.</p> <p>Accordingly, Defendant’s request for a preliminary injunction is granted.</p> <p>Plaintiffs and any agent or other person acting or purporting to act on their behalf or under their direction or control or who receives notice of this Order, during the pendency and through the trial of this action are prohibited from collecting, accepting or holding rent, or taking any other action that attempts, threatens or is designed to or does interfere with the collection or receipt of rent, from any tenant, agent and/or representative thereof, of any of the following properties: (i) a duplex residence located at 16917 Park Ave, Sunset Beach, California 90742; (ii) a 10-unit residential property located at 52328 Oasis Palms Avenue, Coachella, California 92236; and (iii) an 11-unit residential property located at 83121 Sonora Ave., Indio, California 92201.</p> |
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|    |                                                                    | <p>Defendant is ordered to serve and file an undertaking in the amount of \$100,000 within 5 days. (Code Civ. Proc., § 529, subd. (a).)</p> <p>Defendant shall give notice in accordance with the Code.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 54 | <b><i>Lewandowski vs. Memorial Care Saddleback Med. Center</i></b> | <p>Defendant Kenneth Lynn, M.D.'s unopposed motion for good faith settlement determination under Code of Civil Procedure section 877.6 for his settlement with plaintiff Thomas Lewandowski is GRANTED. [ROA #287.]</p> <p><b><i>Legal Standard</i></b></p> <p>Section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor or obligor under a contract in an action in which the tortfeasor is an alleged joint tortfeasor with another or the obligor is a co-obligor under the same contract with another. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for equitable contribution or equitable indemnity by the joint tortfeasor(s) or co-obligor(s). Code Civ. Proc. § 877.6(c). The word alleged means the defendant need not be found liable; the plaintiff's allegations are sufficient. (<i>Hartford Acc. &amp; Indem. Co. v. Superior Court</i> (1995) 37 Cal.App.4th 1174, 1179.)</p> <p>A written settlement agreement need not be executed and presented with the motion for good faith settlement determination so long as the court and all the parties are timely advised of the important terms of the settlement. (<i>Alcal Roofing and Insulation v. Superior Court</i> (1992) 8 Cal.App.4th 1121, 1127.)</p> |



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|  | <p>As to the good faith determination itself, there is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors. But it must harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the “reasonable range” (within the “ballpark”) of the settling tortfeasor’s share of liability for the plaintiff’s injuries. (<i>Tech-Bilt, Inc. v. Woodward-Clyde &amp; Assoc.</i> (1985) 38 Cal.3d 488, 499.)</p> <p>The California Supreme Court in <i>Tech-Bilt v. Woodward-Clyde &amp; Assoc.</i> (1985) 38 Cal.3d 488, set forth the factors to determine good faith. The factors are: (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; (6) the existence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. <i>Tech-Bilt</i>, 38 Cal.3d at 499-500. The settlement must be assessed based on the information available at the time of settlement. (<i>Tech-Bilt, Inc. v. Woodward-Clyde &amp; Assoc.</i>, supra, 38 Cal.3d at 499.)</p> <p>The most important factor is the settling party’s proportionate liability. (<i>Mattco Forge, Inc. v. Arthur Young &amp; Co.</i> (1995) 38 Cal.App.4th 1337, 1350.) A court must consider not only the settlor’s potential liability to the plaintiff, but also its proportionate share of culpability as among all</p> |
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|  | <p>parties alleged to be liable for the same injury. (<i>TSI Seismic Tenant Space, Inc. v. Superior Court</i> (2007) 149 Cal.App.4th 159, 166.) Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. (<i>Id.</i> at 166-167.)</p> <p>Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (<i>City of Grand Terrace v. Superior Court</i> (1987) 192 Cal.App.3d 1251, 1261.) In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the Tech-Bilt standards. (<i>Ibid.</i>)</p> <p>The total amount of damages claimed is not the only criterion. Also relevant is the likelihood that the settling defendant might prevail against a plaintiff’s claims. By definition, determination of a “ballpark” amount includes consideration of the possibility that the plaintiff will not prevail – that is, it is a determination of what a reasonable person could believe the plaintiff would recover at trial. (<i>Cahill v. San Diego Gas &amp; Elec. Co.</i> (2011) 194 Cal.App.4th 939, 964-965.)</p> <p>In <i>Cahill v. San Diego Gas &amp; Elec. Co.</i> (2011) 194 Cal.App.4th 939, 967-968, the court disregarded the plaintiff’s likely recovery of \$5 million and</p> |
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affirmed a finding that a \$25, 000 settlement was proportionate –or, in the ballpark—on the evidence that the settling defendant was not likely to be found liable at trial. “[B]ased on the information available in April 2009, the trial court could rationally conclude a reasonable person could believe Cahill's approximate total recovery at trial would be insubstantial, if any, and Owners would likely have no proportionate liability for that total recovery based on the absence of a viable causation theory in April 2009.” (*Id.* at 967.)

***Discussion***

Defendant Dr. Lynn has provided no information as to the amount of damages claimed by Plaintiff or his likely recovery. Dr Lynn has explained, however, that any damages suffered by Plaintiff were not the result of his action because his treatment was limited to rehabilitation therapy and he had no role in the medical care and prescription of medication complained of by Plaintiff.

There is no evidence of collusion regarding the settlement and no party has opposed the motion for good faith settlement determination.

Accordingly, the motion is GRANTED.

The court will sign the proposed order submitted by Dr. Lynn. Nonetheless, Defendant Dr. Lynn is directed to file the request for dismissal separately.

Defendant Dr. Lynn is to provide notice of this ruling.

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| 55 | <b><i>Neach v. Pacheco</i></b>                   | <p>Callahan &amp; Blaine, PC's motions to be relieved as counsel for Defendants Rodric Pacheco and Pacheco &amp; Neach, PC are granted.</p> <p>Upon signing the order, counsel shall serve said order on all parties, including Defendants. Callahan &amp; Blaine, PC will be relieved as counsel of record for Defendants effective upon the filing of the proof of service of the signed order upon the clients and other parties.</p> <p>Counsel shall give notice of the ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| 56 | <b><i>Samayoa vs. Regenesis Energy, Inc.</i></b> | <p>Cross-Defendants Rockingham Insurance Company's and Certus Claim Administration's unopposed demurrer to Cross-Complainant Danny Garcia Concrete Construction, Inc.'s Cross-Complaint is SUSTAINED with 15 days leave to amend.</p> <p>Cross-Defendants' unopposed request for judicial notice is granted.</p> <p>Service was timely and good. Cross-Complainant failed to file a timely opposition or file a timely amended cross-complaint. Failure to oppose the demurrer may be construed as having abandoned the claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue."].)</p> <p>In addition, the demurrer has merit. Cross-Complainant's claims against Rockingham and Certus are based on the insurance policy that is</p> |

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|  | <p>the subject of Cross-Defendants’ request for judicial notice. (Cross-Complaint, ¶¶ 24-26.) This policy does not support Cross-Complainant’s claims that Cross-Defendants are liable to it, as there is no coverage for “bodily injury” to “(1) an ‘employee’ of any insured.” (RJN, Exh. 1, page 44.)</p> <p>In addition, the policy specifically excludes Cross-Complainant’s claims in Section IV – Commercial General Liability Conditions, wherein it states: “[N]o person or organization has a right under this Coverage Part: a) to join us as a party or otherwise bring us into a “suit” asking for damages from an insured; . . .” (RJN, Exh. 1, page 24.)</p> <p>Furthermore, Cross-Defendant, Certus, is not an insurer, but a third-party claims administrator of insurance claims made against policies issued by Rockingham. (Cross-Complaint, ¶ 7.) To be liable for breach of contract or for bad faith in the context of an insurance claim – a party must be the insurer and a party to the insurance contract, i.e., the policy of insurance. (<i>Gruenberg v. Aetna Ins. Co.</i> (1973) 9 Cal.3d 566, 576 (the insurance adjusting firm, the law firm, their employees, and the agents of the insurance company that issued the insurance policy cannot be held liable as they are “total strangers to the contracts of insurance”).)</p> <p>Based on the foregoing, the demurrer is sustained in its entirety. Cross-complainant is granted 15 days leave to amend from the date of this ruling.</p> <p>Cross-Defendants shall give notice.</p> |
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| 57 | <b><i>Sarvi vs. Ambat</i></b> | <p>Defendant Pearl Ambat has filed motions for orders:</p> <p>(1) compelling plaintiff Mina Sarvi to provide verified responses without objection to form interrogatories, set one (“FI”) [ROA #54];</p> <p>(2) compelling Plaintiff Sarvi to provide verified responses without objection to special interrogatories, set one (“SI”) [ROA #48];</p> <p>(3) compelling plaintiff M.S. to provide verified responses without objection to special interrogatories, set one (“SI”) [ROA #49];</p> <p>(4) compelling Plaintiff Sarvi to provide verified responses without objection to requests for production, set one (“RFPs”), [ROA #50];</p> <p>(5) compelling Plaintiff M.S. to provide verified responses without objection to requests for production, set one (“RFPs”) [ROA #51];</p> <p>(6) deeming admitted the matters in the requests for admission, set one (“RFAs”), served on Plaintiff Saravi [ROA #52]; and</p> <p>(7) deeming admitted the matters in the requests for admission, set one (“RFAs”) served on Plaintiff M.S. [ROA #53.]</p> <p>Defendant’s proofs of service for each of these motions fail to meet the requirements of Code of Civil Procedure section 1013b(b)(1). In the absence of any opposition or response by Plaintiffs, proof of proper service on them is insufficient.</p> <p>The hearing on all motions is continued to October 9, 2026. Defendant is to properly serve Plaintiffs of the motions pursuant to Code. Defendant must also electronically file with the Court proofs of service showing the service was complete.</p> |
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